

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1267
(Representatives Warrey, Louser, M. Ruby, Vollmer)
(Senators Barta, Roers)

AN ACT to amend and reenact sections 43-13-01, 43-13-02, 43-13-05, 43-13-07, 43-13-08, 43-13-13, 43-13-13.2, 43-13-13.3, 43-13-15, 43-13-16, 43-13-17, and 43-13-19 of the North Dakota Century Code, relating to optometrist licensure.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 43-13-01 of the North Dakota Century Code is amended and reenacted as follows:

43-13-01. Definitions.

In this chapter, unless the context or subject matter otherwise requires:

1. "Board" means the North Dakota state board of optometry.
2. "Diagnosis and treatment" means the determination, interpretation, and treatment of any visual, muscular, neurological, interpretative, or anatomical anomaly of the eye which may be aided, relieved, or corrected through visual training procedures or through the use of lenses, prisms, filters, ophthalmic instruments, pharmaceutical agents, or combinations thereof, held either in contact with the eye, or in frames or mountings, as further authorized by this chapter. Laser therapy and the use of invasive surgery are not permitted under this chapter, except superficial foreign bodies may be removed and primary care procedures may be performed.
3. ~~"Optometry" means a primary health care profession whose practitioners are engaged in the evaluation of disorders of the human eye and the examination, diagnosis, and treatment thereof, together with its appendages~~"Distant site provider" means a provider of optometric services through telemedicine from a site other than the patient's origination site. A distant site provider must hold an active license to practice optometry in this state.
4. "Optometric services" means any evaluation, examination, diagnosis, or treatment provided for a patient within the scope of practice of optometry. The term includes the prescription of pharmaceutical agents by a provider to a patient.
5. "Pharmaceutical agent" means diagnostic pharmaceutical agents or therapeutic pharmaceutical agents. The term includes nonscheduled pharmaceutical agents, except for acetaminophen with thirty milligrams of codeine, that have documented use in the treatment of ocular-related disorders or diseases. As used in this subsection:
 - a. "Diagnostic pharmaceutical agents" means pharmaceutical agents administered for the evaluation and diagnosis of disorders of the human eye including anesthetics, mydriatics, myotics, cycloplegics, diagnostic dyes, diagnostic stains, and pharmaceutical agents to evaluate abnormal pupil responses.
 - b. "Therapeutic pharmaceutical agents" includes topically administered and prescribed pharmaceutical agents for treatment of ocular-related disorders or disease, locally administered pharmaceutical agents for primary eye care procedures, oral anti-infective agents, oral antihistaminic agents, and oral analgesics for the treatment of ocular-related disorders or diseases.
- 5-6. "Practicing optometry" means:

- a. Displaying a sign or in any way advertising as an optometrist.
- b. Employing any means for the measurement of the powers of vision or the adaptation of lenses for the aid thereof.
- c. Engaging in any manner in the practice of optometry.

SECTION 2. AMENDMENT. Section 43-13-02 of the North Dakota Century Code is amended and reenacted as follows:

43-13-02. Persons exempt from provisions of chapter.

The provisions of this chapter do not apply to the following persons:

1. Persons who sell spectacles, eyeglasses, or other articles of merchandise without attempting to practice optometry.
2. Student interns who are currently enrolled in an optometry school or college accredited by the accreditation council on optometric education of the American optometric association, or its successor agency, or who have graduated no more than ~~three~~six months prior, and are under the immediate and direct supervision of a licensed optometrist.
3. Physicians and surgeons licensed under chapter 43-17.

SECTION 3. AMENDMENT. Section 43-13-05 of the North Dakota Century Code is amended and reenacted as follows:

43-13-05. ~~Secretary~~Executive director of board - Duties - Record - Custodian of fees - Report.

The ~~secretary~~executive director of the board, or the ~~secretary's~~executive director's designee, has the following duties:

1. Keep a full record of the proceedings of the board.
2. Be custodian of all fees coming into the possession of the board.
3. At such times as may be required by the board, furnish a complete statement of receipts and disbursements under oath, together with vouchers, receipts, and such other evidence of the receipts and disbursements as may be required by the board.

SECTION 4. AMENDMENT. Section 43-13-07 of the North Dakota Century Code is amended and reenacted as follows:

43-13-07. Compensation and expenses of board members.

A member of the board shall receive as compensation for each day the member actually is engaged in performing the duties of office a per diem as established by the board, mileage and travel expenses as are provided for in section 54-06-09, ~~and additional allowance for other necessary expenses incurred in attending said meeting not to exceed five dollars per day. All funds collected or received by the board must be deposited and disbursed in accordance with section 54-44-12.~~

SECTION 5. AMENDMENT. Section 43-13-08 of the North Dakota Century Code is amended and reenacted as follows:

43-13-08. ~~Secretary~~Executive director of board - Compensation.

The ~~secretary~~executive director of the board shall receive for clerical expenses and other expenses of the board an allowance, and a salary or other compensation, as the board shall determine.

SECTION 6. AMENDMENT. Section 43-13-13 of the North Dakota Century Code is amended and reenacted as follows:

43-13-13. Duties of board.

The board has the following duties:

1. To enforce the provisions and carry out the purposes of this chapter.
2. To make and enforce such rules and regulations consistent with law as may be necessary for the proper performance of its duties; the effective enforcement of this chapter; the reasonable regulation of the profession of optometry and the practice thereof by persons licensed under this chapter; and to protect the health, welfare, and safety of the citizens of this state.
3. To proceed in the courts of this state by injunction when considered necessary to restrain any violation of this chapter.
4. To establish the following by rule:
 - a. Application fees;
 - b. License fees;
 - c. Renewal fees;
 - d. Late fees;
 - e. Endorsement fees;
 - f. Licensure verification fee;
 - g. Decorative wall certificate fee; and
 - h. Continuing education fees.

SECTION 7. AMENDMENT. Section 43-13-13.2 of the North Dakota Century Code is amended and reenacted as follows:

43-13-13.2. Practice of optometry - ~~Certification requirements~~ - Notification Requirements to practice optometry - Informed consent.

1. Any person engaged in visual training procedures or who employs or prescribes lenses, prisms, filters, ophthalmic instruments, or combinations thereof, held either in contact with the eye, or in frames or mounting, to aid, relieve, or correct any visual or ocular anomaly, or holds out as being able to do so, is deemed to be engaged in the practice of optometry.
2. ~~Before any optometrist may prescribe and administer pharmaceutical agents in the treatment and management of ocular diseases, the optometrist must first be certified or qualify for certification in the use of diagnostic pharmaceutical agents. For additional certification to prescribe and administer pharmaceutical agents in the treatment and management of ocular disease, the board shall require at least seventy-six hours of didactic instruction and twenty-four hours of clinical application of pharmaceutical agents for the treatment and management of ocular diseases. The course for therapeutic certification must be provided by an institution accredited by a regional or professional accrediting organization that is recognized and approved by the United States department of education or the council on postsecondary accreditation.~~
3. An optometrist may not dispense therapeutic pharmaceutical agents, except an optometrist may:

- a. Provide a patient a drug sample at no cost to the patient; or
- b. Sell contact lenses or ophthalmic devices that are classified by the federal food and drug administration as a drug.

~~4.3. The board shall provide the board of pharmacy upon request a list of licensed optometrists certified in the use of pharmaceutical agents. An optometric telemedicine provider-patient relationship is established when a patient seeks optometric services from a provider, and the provider agrees to provide optometric services to the patient, except in an emergency. The provider-patient relationship may be expressly created or created through implication; however, the provider-patient relationship is not created through receipt of patient health information by the provider unless a prior provider-patient relationship exists. The initial patient relationship must be established through an eye examination conducted by a licensed optometrist with a physical location in this state.~~

~~4. A licensed optometrist may act as a distant site provider and use telemedicine to provide care in accordance with standards of practice established by the board by rule. Telemedicine services may include consultation, diagnosis, and treatment for ocular diseases, provided that the optometrist complies with the regulations under this section. Before providing any optometric services to a patient via telemedicine, the provider first shall provide appropriate verification of the provider's identification, licensure, and current contact information.~~

~~5. Informed consent regarding the optometric services to be provided via telemedicine must include, at a minimum, information regarding the provider's technology used to provide optometric services via telemedicine and how to mitigate or resolve any technological disconnection or issue.~~

SECTION 8. AMENDMENT. Section 43-13-13.3 of the North Dakota Century Code is amended and reenacted as follows:

43-13-13.3. Standard of care –~~When consultation with physician required.~~

~~1. An optometrist certified by the board in the use of pharmaceutical agents as provided in this chapter must be held to the same standard of care in the use of such agents as are physicians licensed by the North Dakota board of medicine.~~

~~2. Any optometrist authorized by the board to use pharmaceutical agents shall consult with a physician duly licensed to practice medicine when any diseased or pathological conditions of the eye do not respond to treatment. The consultation must be documented in the patient's record.~~

SECTION 9. AMENDMENT. Section 43-13-15 of the North Dakota Century Code is amended and reenacted as follows:

43-13-15. Unlawful to practice without license - Sale of glasses - Regulations.

No

~~1. A person may not practice optometry in this state unless the person first obtains a license and complies with the requirements of this chapter. Eyeglasses, spectacles, and lenses may be vended as merchandise only:~~

~~1. To dealers.~~

~~2. From permanently located and established places of business in this state.~~

~~Any licensed optometrist, however, may fit and vend eyeglasses, spectacles, and lenses at any place in this state. Notwithstanding any other provision of law, it is unlawful for any person, or any entity other than a licensed optometrist or a licensed physician to dispense, fit, or prescribe to~~

the public contact lenses, or any medical appliance having direct contact with the cornea of the eye.

SECTION 10. AMENDMENT. Section 43-13-16 of the North Dakota Century Code is amended and reenacted as follows:

43-13-16. Examination required - When given.

Before any person is granted a license to practice optometry in this state, the person must pass an examination required by the board by rule. ~~The examination may be conducted at such times and places as are prescribed by the board.~~

SECTION 11. AMENDMENT. Section 43-13-17 of the North Dakota Century Code is amended and reenacted as follows:

43-13-17. Application for licensure - Contents - Educational requirements - Fee.

1. Any person desiring to take the examination for or to secure a license to practice optometry in this state shall file with the secretaryexecutive director of the board a writtenan application in the form prescribed by the board. ~~An application for admission by examination must be filed at least fifteen days before the date of the examination.~~ The applicant also shall furnish satisfactory proof that the applicant:
 1. a. Is at least eighteen years of age;
 2. b. Is a person of good moral character; and
 3. c. Is a graduate of an optometry school or college accredited by the council on optometric education.
2. The applicant shall pay to the secretaryexecutive director of the board a registrationan application fee of a reasonable sum fixed by the board by rule.

SECTION 12. AMENDMENT. Section 43-13-19 of the North Dakota Century Code is amended and reenacted as follows:

43-13-19. License - When issued - Fee.

Every applicant for a license to practice optometry in this state who meets the standards required for licensure, including successfully passing the required examination, must be licensed upon payment to the secretaryexecutive director of the board of a reasonable sum fixed by the board.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1267.

House Vote: Yeas 81 Nays 2 Absent 11

Senate Vote: Yeas 47 Nays 0 Absent 0

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State